

1. Contracts: the formation, interpretation, and enforcement of agreements between parties

A. Applicable Law

- UCC (Goods) or CL (services)

B. Formation

- Offer: **communicated promise** to do something (or refrain from) in exchange for value
 1. Firm Offer Rule | Option Contract
 2. Counteroffer
- Acceptance: a **manifestation** of objective **intent** to **assent** to the **terms** of the deal
 1. Bilateral: Mirror Image Rule (all terms) or UCC: quantity; Land: property / employ: duration
 2. Unilateral: Specifically communicated; inducement; complete performance
- Consideration: a detriment induced by a benefit.
 1. Gifts:
 2. Promissory Estoppel:
- Terms (modifications/termination)
 1. Termination:
 2. Modification:
 3. Integration:
- Defense to Formation
 1. Mistake: One Party $\neq$ void unless relied upon + π knew/should've | Mutual = void
 2. Illegality:
 3. Material Misrepresentation
 4. Duress
 5. Undue Influence
 6. Coercion

C. Interpretation

- Parol Evidence Rule: prior/contemporaneous evidence; fully integrated written agmt
 1. Ambiguous terms: admissible to resolve;
 2. Contradictory: Inadmissible
 3. Modifications: evidence of, admissible
- **Statute of Frauds:** Marriage, Real Property, Suretyship, One Year, UCC > 500
 1. Part/Complete Performance:
 2. Paid For/Delivered Goods:
 3. Waiver/Admission in Court:

D. Performance

1. Condition Precedent: $A \rightarrow B$; if and only if A, then B
 2. Cond Subsequent: $A \rightarrow (B)$; if A happens, B is terminated;
- Breach
 1. Material
 2. Partial
 3. Anticipatory: gives clear and certain notice
 - AP: may terminate + sue | demand performance
 - Defense to Performance

1. Unconscionability
2. Excuse/Frustration of Purpose
3. Impossibility
4. Impracticality

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E. Remedies

- Expectation Dmgs: Put the party in the same position he'd be in but for the Δ 's breach
- Specific Performance
- Restitution

2. Torts:

A. Negligence: Δ breached a duty of care owed to π , causing π to suffer damages.

- Duty
- Breach
- Causation
- Damages

1. Collateral Source Rule, Duty to Mitigate

- Defenses: Comparative/Contributive Negligence; Assumption of Risk; Intervening Cause

B. strict liability:

- Damages
- Defenses: Assumption of risk; contributory negligence

C. intentional torts: Voluntary, Intentional Acts with KSK results causing damages

- Battery: i) harmful/offensive contact, ii) to another person; iii) causation (direct or indirect)
 1. Intent: Liable if intends to make contact AND/OR contact be harmful/offensive; Trans Intent
- Assault: intend act to i) cause apprehension of ii) imminent harm / offensive contact
 1. Mere words won't suffice; Trans Intent ok
- IIED: Intend or act reckless disregard i) extremely/outrageously ii) causing *severe* ED
 1. Transferred Intent: Yes only to Bystander; No if intended a different tort
 2. Extreme and Outrageous
 3. Causation: Proximate and But For
- False Imprisonment: Intent to Confine/Constrain (no reasonable means of safe escape)
 1. Time is immaterial; actual or imagined confinement is ok (P must be aware of confinement)
 2. Shopkeeper's privilege: reasonable detention of suspected shoplifter
 3. Broad exception for law enforcement

D. Harms to Property Interests: Trespass, Conversion

- Trespass to Chattels: Interference with P's shit;
 1. Damages: Actual, loss of use if dispossessed
- Trespass to Land: Physical invasion; proper P;
 1. Necessity as Defense: Private: Qualified Priv | Public unqualify privilege
- Nuisance: Private is substantial, unreasonable interference w/ another's use or enjoyment of land
 1. Interference must be intentional
 2. Substantial interference
 3. Defenses: Regulatory Compliance; Coming to Nuisance = both incomplete

E. Negligence

- Defenses: Consent; Privilege; Self-Defense (no duty to retreat; not for aggressor); Defense of Others, Parental Discipline Privilege of Arrest

F. Defenses:

3. Professional Responsibility

A. Lawyer Client Relationship

- Acceptance: L/C begins when C believes | Ends
- Termination/Mandatory WD: (C always, L w/ reason): C/F or Violation, Health, KSK C filed 2 harass
 - 1. Permissive: No GF Args or Repugnant, seeks C/F, \$ Burden, No Pay; Unreason Diff, Bad Co-L
 - Return client papers and property | promptly refund C | maintain confidentiality
- Scope: C decides objectives, goals, acceptance/plea | L: tactics + legal strategy,
 - 1. Must communicate written offers or significant ones (crim: all)
- Prohibitions: Crime/Fraud

B. Conflicts of Interest: L cant rep C2 if L or C1 has a legal/business/financial/professional/personal

- No Sex w C, Limited Business,
- C2 Exception: L reason bel he can competent rep, no overlap, both Cs **informed written consent**
- Former Cs: Cannot if new Cs interest is **materially adverse** | Prospect C: "material to the matter"
 - 1. Timely Screened + Informed Written Consent Exception usually

C. Confidentiality: C must intend, for purposes of LegAdv/Rep, lasts forever, L must assert/C may waive

- Except: Crim Act (CA) reasonably believed will result in death/SBH, duty to try to persuade C first
 - 1. CA: No financial harm exception.
- Required by law/rule: reporting misconduct w/in Org: duty of confidentiality exists; if outside org: L must resign if necessary to protect C's interests first.
- Nec to prevent C/F:

D. Competence: D of Nec Kn/Sk/Exp. If not, must decline or obtain assistance.

E. Candor & Fairness: D to be T+F w/ C, L, Ct | avoid Friv Claim | Expedite Litigation

- Fairness includes access to evidence, bring to attention if pertinent to AP's case
- Client Fraud: reasonable remedial measures do not include disclosure of confidentiality
- No False statements | dishonest or fraudulent conduct | obstruct or misuse justice

F. Adverts: must not make false/misleading statements about L's services; always include name/address

- Cannot guarantee an outcome; Mailings must Boldly Declare "Advertisement"
- Solicitation: Anti-Ambulance Chasing Rules; cannot be pecuniary gain only; not permitted to contact prospective Ds

G. Fees: Honest Accounting, reasonable fees; **misleading statements; excessive fees;**

- Factors: Novel/Diffic of LQ, Work/Res ratio, time limits, nature/length of PR, L's Exp/Rep, C's Soph
- Contract: W+S if >\$100 unless corporate/ongoing C (No exceptions for Contingent Fees)
- Contingent Fees: Civil (non-DV) cases only; must include everything
- Accounts: No Commingling; Records for 5 Years

H. Integrity of Profession: violates ethics rules, commits a criminal act that reflects adversely on honesty, engage in MisrepDisDecFrau; vicariously liable if direct supervisor w/ knowledge + fail to avoid/mitig

4. Property:

A. Types of property,

- B. ownership,
- C. transfer,
- D. landlord-tenant law

5. Constitutional Law:

A. Separation of powers: C

- Legislative: Congressional acts require express/implicit power, except MILD
 1.
 - Executive
 - Judicial Congressional Acts require express/implicit power, except MILD
 - If congress delegates, only way to change is by legislation

B. Federalism: state action prereq to trigger constitutional protections

- State Action: trad'l govt function | significant state involvement
 1. Traditional: when private person carries out role traditionally held exclusively by state
 2. Significant Involvement: sufficient mutuality; pervasively entwined; i.e. state-created entity or state-empowered actor
 - Mere licensing or regulation of private party isn't state action
 - State must act affirmatively to facilitate/encourage/authorize activity
 3. Businesses that govt substantially regulates or grants monopoly
- Judicial Power: Establishment Clause gives Supreme Court + Fed'l Courts jurisdiction

C. due process,

1. Substantive Due Process

- Strict Scrutiny: must be **least restrictive** means to achieve compelling gov't purpose
- Intermediate Scrutiny: must be substantially related to an important gov't purpose
- Rational Basis: Must be rationally related to some legitimate gov't purpose

- Procedural Due Process: ensures the necessary procedures in place, don't deprive individuals and other "persons" (e.g., corporations) of "life, liberty, or property".

1. Court balances rights of private interests affected with the government's policy interests.
 - risk of erroneous depriv. in current procedure v. probable value of add'l/sub safeguards
2. Generally entitled to **notice** of government's action and **an opportunity to be heard**

D. equal protection:

- to trigger strict/interm. scrutiny, there must be discriminatory intent on part of the government
 1. Discriminatory on its face: law, as written, creates distinctions between classes of persons
 2. Discriminatory application— law, neutral on its face, but applied in a discriminatory fashion
 3. Discriminatory motive—neutral on face/application, but results in a disparate impact; proof of discriminatory motive or intent is required
- Suspect Class(Strict): Race, Nat'l Origin, ethnicity | Quasi- (interm.): gender | RB: age, orient., wealth

E. First Amendment protections

- Freedom of Religion: strict scrutiny if govt favors a religion or no religion over another religion
 1. Religiously affiliated Schools: aid is permitted only for secular activities
 2. Belief: absolutely protected; Conduct: intent to restrict: strict scrutiny, if not: rational basis
- Freedom of Expression & Association: govt interest substantially outweigh chilling effect
 1. Expressive Conduct: lesser degree; reg must further important govt interest, not suppress

2. Overbroad: facially invalid if overly burdensome on substantial amount of speech
3. Vagueness: void if fails to provide ordinary intellect w/ fair notice of what's prohibited
4. Prior Restraints: Void unless 1) particular harm avoided, 2) procedural safeguards in place
 - Must be narrowly drawn, reasonable, and definite
 - Censoring body must promptly seek injunction
 - Must be a prompt and final judicial determination of validity of restraint
 - Government has burden to prove censored material is NOT protected speech

F. Judicial Powers: Arising under Const. | Diversity | Supremacy Cl | St v St | St/C vs Foreign

- Also: constitutionality of another branch's act, a state's highest court, State actions
 - 11th Amend: bars State A cit. v. State B; state immunity;
 - Sovereign Immunity: bars cit. v. their own state w/o its consent
 - Judicial Review: Standing | Timeliness: ripeness | Justiciability | Abstention: strong state interest
1. Π must establish Injury in fact; causation; redress/prevent injury; π is the prudent party
 2. Taxpayer: standing over one's tax bill; challenge govt expenditure re: establishment clause

6. Criminal Law:

A. Mens rea: guilty mind or legally proscribed mental state; none for SL crimes

- Specific Intent Crimes (FIAT): subjective desire, specific objective, or special knowledge
 1. First Degree Murder
 2. Inchoate Offenses
 3. Assault with intent to commit battery
 4. Theft Offenses
- Malice crimes (CL: murder, arson)
 1. Reckless disregard of a high risk of harm
 2. Requires only a criminal act w/o excuse, justification, mitigation
- General Intent (Battery, rape, kidnapping, false imprisonment)
 1. Intent: Purposely; knowingly; recklessly; negligently
 - Purp: conscious objective is to cause a certain result
 - Know/Will: aware or knows results is practically certain to occur
 - Reck: conscious disregard of substantial, unjustifiable risk
 - Negl: gross deviation from standard of care (should've been aware of risk of crime)
 2. Transferred Intent: δ 's intent to cause harm to one transfers to anyone else harmed
 - Just homicide, battery, arson | not for attempted crimes | MPC- liability recognized
 3. Strict Liability: (statutory rape, bigamy, regulation of food/drug violation)
 4. Vicarious Liability: imposes criminal liability on Δ for actus reus of third party
 - Generally limited to regulatory crimes; corporations and their high-ranking Off/Dir
 5. Causation: Δ 's mens rea must cause the actus reus; and the act must cause the particular result made unlawful by statute or law
 6. Mistake of Fact or Law as a defense
 - Fact: may negate specif. intent crimes even if unreasonable, or gen intent crimes ONLY if reasonable
 - Law: only valid if Δ relied on court/admin order, negates required intent/state
 7. Accomplice Liability:

B. actus reus: a voluntary, affirmative act or omission causing a criminally proscribed result

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C. Homicide: malice aforethought | Felony Murder Rule FMR

- Malice: Intent to kill or seriously maim, reckless indifference (depraved heart), felonious intent
- FMR: BARRK (Burg, Ars, Rape, Robb, Kidnap) must be foreseeable, needn't be intended

1. Bystander death caused by victim of a felony/police officer is NOT FMR not foreseeable

- Statutory

1. 1st Degree: Deliberate and premeditated; specific intent crime; time for reflection; FMR

2. 2nd Degree: necessary malicious intent or by default

3. Voluntary manslaughter: "Heat of Passion" (provocation > words), misidentified victim

- If D started the altercation or unreasonably believed in necessity of using force

4. Involuntary M'Slaughter: unintentional; criminally negligent or during an unlawful act

- Grossly negligent action (inaction if duty); malum in se crime (A&B/B&E)

D. Theft: Robbery | Larceny

- Larceny: Trespassory taking/carry away of V's personal property; specific intent; permanently deprive owner of property
- Larceny by Trick: Accomplished by Fraud/Deceit; results in conversion
- Embezzlement: Fraudulent conversion of property of another by a person in lawful possession
- False Pretense: Obtaining title of another through reliance; on a known false representation of a material past or present fact; and made with intent to defraud
- Robbery: Larceny; from the person or presence of the victim; by force or intimidation

E. defenses

- Insanity: lacked substantial capacity to appreciate wrongfulness or conform his conduct, as a result of mental disease or defect
- Intoxication: if Voluntary- purposely; knowingly SI crimes; Invol: general defense

7. **Evidence:** What is this evidence? What is it being Offered for? Does **Probative Value > Prejudicial Harm**

A. Relevance: Evidence must be both relevant to a present fact of the case (logically) and make that fact more or less probable (Legally)

- Irrelevant: Distracting, Confusing, **unfairly prejudicial to one or more parties**
- **Probative Value > Prejudicial Harm**

B. Hearsay: an out of court statement offered in support of the truth of the matter asserted

- Hearsay Exceptions:

1. **Prior statements** may be used to impeach the credibility of a witness

C. impeachment,

D. character evidence

8. **Civil Procedure:**

A. Jurisdiction,

B. venue,

C. pleadings,

D. motions,

E. discovery, and

F. pretrial conferences

9. Criminal Procedure:

A. Search and seizure- 4A protects you from unreasonable search and seizure. What makes a search + seizure reasonable- **reasonable suspicion**

was it govt conduct and was the person subject to reasonable expectation of privacy?

- Government Action

1. Application: Govt- police, agents, deputized;

- No Reasonable Expectation of Privacy:

1. Sound of your voice
2. Style of your handwriting
3. Paint on the outside of car
4. Account records
5. Monitoring location of car on public street/driveway
6. Anything that can be seen across open fields
7. Anything seen from flying over in public airspace
8. Odors emanating from your luggage
9. Garbage set out on curb for collection

- Reasonable Expectation of Privacy + Government Agent: **Get a Warrant!**

B. Warrant

Search Warrant Validity: must be based upon PROBABLE CAUSE = REASONABLE SUSPICION:

Does it look like probable cause

Precise on its face particularity as to person, place and thing

Was it issued by neutral, detached magistrate

- Probable cause + Precise on its Face + Neutral
- Exceptions to Search Warrant Requirement::

1. During/Immediately After Lawful Arrest: (incident to lawful arrest)

- Personal Wingspan (exclude cellphones)
- Home- protective sweep
- Vehicle- plain view (requires same probable cause as a search warrant)

2. Exigent Circumstances- Totality of Circumstances

- Hot Pursuit &
- Evanescent Evidence: might go away if we took time to get warrant
- Emergency

3. Consent: Freely Given and Intelligent

- Saying Warrant negates consent
- Do not have to warn you of right NOT to consent
- Authority to consent: 2+ right-holders

4. Stop and Frisk

5. Automobile Exception- "Plain View" doctrine

- All Wiretapping/Eavesdropping Requires a Warrant

1. BIG EXCEPTION: Unreliable Ear

C. Exclusionary Rule: fruits of a rotten tree; prevents introduction of unlawfully seized evidence

- Does not apply to grand jury, habeus corpus review; can be used to impeach defendant, civil proceedings
- Valid Search Warrant: Showing of Probable Cause **Totality of Circumstances** to make a common sense valuation- Sum of Everything be enough to allow magistrate to make a common sense eval)
 1. Issued by a neutral/detached magistrate upon finding of probable cause
 - Support: Officer's observations; reliable information; evidence seized during stop based on **reasonable suspicion**, discovered in plain view
 - Based in part on an anonymous informant's tip (Outer Limit)
 2. Must be **Precise** on its face: particularity as to place and things
- **Exceptions:** Big One is Intervening Event
 1. Inevitable Discovery
 2. Independent Source- unrelated to tainted evidence
 3. **Attenuation:** passage of time/intervening event may purge primary taint
 4. **Good Faith:** Relying on an invalid warrant in good faith is excluded

D. 5th Amendment

- Right Against Compulsory Self-Incrimination
 1. Waives Right by taking the stand and answering prosecution's questions; witness waives it by disclosing self-incriminating information
- Police Interrogation: Not Admissible unless read Miranda Rights
- Miranda Warning – Right to Counsel: Invocation = 5th amendment Right to Counsel is NOT offense-specific
- 6th amendment Right to Counsel is Offense specific
 1. Process of custodial police interrogation
 2. Attorney only need be present at interrogation

E. Miranda warnings: in **Custody** (not free to leave) during **Interrogation** (police knew or should've known might get damaging statement) have miranda rights

- Would a reasonable person believe they were free to leave?
 1. NOT Custodial (no Miranda needed): Probation + Traffic Stops
- Right to Counsel-
- Right to Silence-
- EXCEPTIONS:
 1. Spontaneous statements
 2. Public safety
 3. Routine booking
 4. Undercover police

F. Grand Juries:

- Can be in secret
- Exclusionary rule doesn't apply

G. Pre-emptory Challenges cannot be based on race or gender

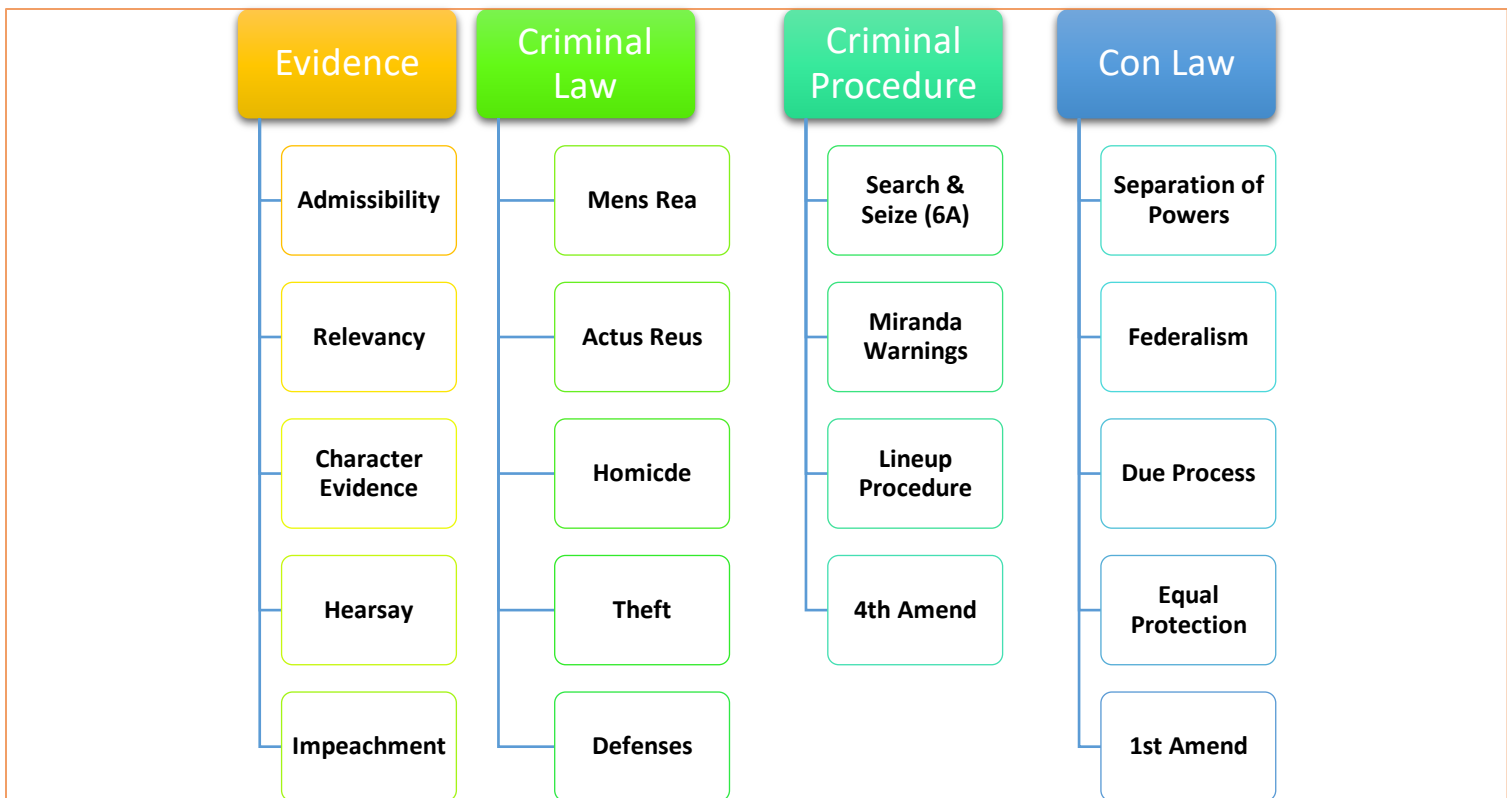
H. Right to Trial-> maximum authorized sentence exceeds six months

I. Deficient Counsel + 2) But for such deficiency the result of the proceeding would've been different

J. lineup procedures, Corporeal = "in-person" | Non-corporeal = Photo Array

- Substantive Basis Attack: Denial of right to counsel Post-charge
 1. Lineups & Showups give right to counsel
 2. Photo Arrays NO RIGHT to counsel
- Attack 2- Denial of Due Process Riggths
 1. Unnecessarily (Impermissibly) suggestive that gives rise to:
 2. **Substantial chance of misidentification**
- Remedy: Exclude in court the identification
 1. Relevance:
 2. Can be defeated by Adequate Independent Source:
 - AMPLE OPPORTUNITY objection by Proseuctor will win admissibility

K. Fourth Amendment protections



Contracts

Offer

Acceptance

Consideration

Breach

Remedies

Torts

Negligence

- Duty
- Breach
- Causation
- Damages

Strict Liability

Intentional Torts

Defenses

Property

Types of Property

Ownership

Transfer

Landlord/Tenant

Civ Pro

Jurisdiction

Venue

Pleadings

Motions

Discovery